

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

TYRELL MITCHNER,

Plaintiff,

-against-

THE CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, POLICE OFFICER KEITH ORVIETO,
SERGEANT MATTHEW FEIGENBAUM and SERGEANT
JASON STOCKER,

Defendants.

X

Filed: _____

INDEX NO.

Plaintiff designates Bronx
County as the place of trial.

S U M M O N S

The basis of venue is the
County in which the cause
of action arose.

To the above named Defendants:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve
a copy of your answer on the plaintiff's attorneys within 20 days after the service of this
summons, exclusive of the day of service of this summons, or within 30 days after service of this
summons is complete if this summons is not personally delivered to you within the State of New
York.

In case of your failure to answer this summons, a judgment by default will be taken
against you for the relief demanded in the complaint, together with the costs of this action.

Dated: New York, New York
April 15, 2016



LEAV & STEINBERG, L.L.P.
Attorneys for Plaintiff
140 Broadway, Suite 3601
New York, New York 10005
(212) 766-5222

SEE ATTACHED RIDER

THE CITY OF NEW YORK
c/o NEW YORK CITY CORPORATION COUNSEL'S OFFICE
100 Church Street
New York, New York 10007

NEW YORK CITY POLICE DEPARTMENT
c/o NEW YORK CITY CORPORATION COUNSEL'S OFFICE
100 Church Street
New York, New York 10007

POLICE OFFICER KEITH ORVIETO
c/o NEW YORK CITY CORPORATION COUNSEL'S OFFICE
100 Church Street
New York, New York 10007

SERGEANT MATTHEW FEIGENBAUM
c/o NEW YORK CITY CORPORATION COUNSEL'S OFFICE
100 Church Street
New York, New York 10007

POLICE OFFICER KEITH ORVIETO
c/o NEW YORK CITY CORPORATION COUNSEL'S OFFICE
100 Church Street
New York, New York 10007

JASON STOCKER
c/o NEW YORK CITY CORPORATION COUNSEL'S OFFICE
100 Church Street
New York, New York 10007

AK: am

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

X

INDEX NO.

TYRELL MITCHINER,

Plaintiff,

VERIFIED COMPLAINT

-against-

THE CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, POLICE OFFICER KEITH ORVIETO,
SERGEANT MATTHEW FEIGENBAUM and SERGEANT
JASON STOCKER,

Defendants.

X

Plaintiff, by his attorneys, LEAV & STEINBERG, L.L.P., as and for his Verified
Complaint, respectfully alleges, upon information and belief:

AS AND FOR A FIRST CAUSE OF ACTION FOR ASSAULT

1. At all times herein mentioned, the plaintiff was and still is a resident of the
County, City and the State of New York.
2. At all times herein mentioned, the defendant THE CITY OF NEW YORK was
and remains a municipal corporation, duly organized and existing under and by virtue of the laws
of the State of New York.
3. At all times herein mentioned, the defendant NEW YORK CITY POLICE
DEPARTMENT was and remains a public authority, duly organized and existing under and by
virtue of the laws of the State of New York.
4. At all times herein mentioned, the defendant NEW YORK CITY POLICE
DEPARTMENT was and remains a department of THE CITY OF NEW YORK.

5. At all times herein mentioned, the defendant POLICE OFFICER KEITH ORVIETO was assigned to the 40th Precinct, located at 257 Alexander Ave, Bronx, NY 10454.

6. At all times herein mentioned, the defendant SERGEANT MATTHEW FEIGENBAUM was assigned to the 40th Precinct, located at 257 Alexander Ave, Bronx, NY 10454.

7. At all times herein mentioned, the defendant SERGEANT JASON STOCKER was assigned to the 40th Precinct, located at 257 Alexander Ave, Bronx, NY 10454.

8. The plaintiff has complied with all of the conditions precedent to the bringing of this action and have complied with the provisions in the statutes in such cases as made and provided.

9. The plaintiff presented a proper notice of claim to defendants, in accordance with section 50-e of the General Municipal Law.

10. Prior to the commencement of this action, a notice of claim in writing was served on behalf of the plaintiff upon the defendants on July 6, 2015.

11. That said notice of claim was served upon defendants within ninety (90) days from the happening of the negligence of the defendants as herein described and sued upon.

12. That more than thirty (30) days have elapsed since the presentation by plaintiff of said notice of claim, said claims remain unadjusted, and the defendants have neglected and refused to make any adjustment of same.

13. A hearing pursuant to General Municipal Law 50-h has been held on April 15, 2016.

14. This action is being commenced within one year and ninety days after the dates

that the within causes of action arose.

15. That this action is commenced within one year and ninety days of April 15, 2015, the date of accrual of plaintiff's claims.

16. At all times herein mentioned, the defendant THE CITY OF NEW YORK operated and maintained police forces charged with the duty and responsibility of maintaining the peace in the City of New York.

17. At all times herein mentioned, the defendant THE CITY OF NEW YORK operated, managed, and controlled defendant NEW YORK CITY POLICE DEPARTMENT.

18. At all times herein mentioned, THE CITY OF NEW YORK operated maintained, managed, supervised, and controlled a police department as part of and in conjunction with its municipal functions.

19. At all times herein mentioned, the defendants POLICE OFFICER KEITH ORVIETO, SERGEANT MATTHEW FEIGENBAUM and SERGEANT JASON STOCKER were employees of THE CITY OF NEW YORK.

20. At all times herein mentioned, the defendants POLICE OFFICER KEITH ORVIETO, SERGEANT MATTHEW FEIGENBAUM and SERGEANT JASON STOCKER were employees of NEW YORK CITY POLICE DEPARTMENT.

21. At all times herein mentioned, THE CITY OF NEW YORK employed and supervised the defendants POLICE OFFICER KEITH ORVIETO, SERGEANT MATTHEW FEIGENBAUM and SERGEANT JASON STOCKER.

22. At all times herein mentioned, NEW YORK CITY POLICE DEPARTMENT employed and supervised the defendants POLICE OFFICER KEITH ORVIETO, SERGEANT

MATTHEW FEIGENBAUM and SERGEANT JASON STOCKER.

23. At all times herein mentioned, the defendants POLICE OFFICER KEITH ORVIETO, SERGEANT MATTHEW FEIGENBAUM and SERGEANT JASON STOCKER were the employees of THE CITY OF NEW YORK, duly appointed and acting as police officers for defendant NEW YORK CITY POLICE DEPARTMENT, and were acting in the course and scope of their employment.

24. At all times herein mentioned, the defendants POLICE OFFICER KEITH ORVIETO, SERGEANT MATTHEW FEIGENBAUM and SERGEANT JASON STOCKER were the employees of THE CITY OF NEW YORK, duly appointed and acting as police officers for defendant NEW YORK CITY POLICE DEPARTMENT and acting in furtherance of the interests and business of their employers.

25. At all times herein mentioned, the defendants POLICE OFFICER KEITH ORVIETO, SERGEANT MATTHEW FEIGENBAUM and SERGEANT JASON STOCKER were engaged in conduct incidental to the performance of their functions in the course of their duties as employees of the defendants.

26. At all times herein mentioned, the defendants POLICE OFFICER KEITH ORVIETO, SERGEANT MATTHEW FEIGENBAUM and SERGEANT JASON STOCKER were engaged in supervisory capacities in the scope of their employment by the defendants.

27. On April 15, 2015, the plaintiff was a lawful citizen abiding by all laws, statutes, and ordinances of the State of New York.

28. On April 15, 2015, plaintiff was lawfully at the parking lot of Action Environmental Services a/k/a Action Carting located at 920 East 132nd Street, in the County of

Bronx, City and the State of New York.

29. On April 15, 2015, the defendants POLICE OFFICER KEITH ORVIETO, SERGEANT MATTHEW FEIGENBAUM and SERGEANT JASON STOCKER were present at and around the parking lot of Action Environmental Services a/k/a Action Carting located at 920 East 132nd Street, in the County of Bronx, City and the State of New York.

30. On April 15, 2015, the defendants POLICE OFFICER KEITH ORVIETO, SERGEANT MATTHEW FEIGENBAUM and SERGEANT JASON STOCKER were acting in the course and scope of their employment with the defendants THE CITY OF NEW YORK and/or NEW YORK CITY POLICE DEPARTMENT.

31. On April 15, 2015, the defendants POLICE OFFICER KEITH ORVIETO, SERGEANT MATTHEW FEIGENBAUM and SERGEANT JASON STOCKER were present with the knowledge, authority, permission, and consent of the defendants THE CITY OF NEW YORK and/or NEW YORK CITY POLICE DEPARTMENT.

32. At all times herein mentioned, defendants had the duty to ensure that their actions, activities, and behavior conformed to a certain standard of conduct established by the law for the protection of civilians, including the plaintiff, against unreasonable risk of harm.

33. On April 15, 2015, the plaintiff was unlawfully, illegally, unjustifiably, intentionally, maliciously, wantonly, recklessly, and without cause, reason, or justification, assaulted by officers employed by the defendants THE CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT, including but not limited to the defendants POLICE OFFICER KEITH ORVIETO, SERGEANT MATTHEW FEIGENBAUM and SERGEANT JASON STOCKER without just cause or provocation.

34. On April 15, 2015, the defendants THE CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT, including but not limited to the defendants POLICE OFFICER KEITH ORVIETO, SERGEANT MATTHEW FEIGENBAUM and SERGEANT JASON STOCKER intentionally committed acts which caused the plaintiff to apprehend that he was in imminent danger of being harmfully and offensively contacted by the defendants.

35. The occurrence was caused solely by the conduct of the defendants and without any provocation or unlawful act on the part of the plaintiff contributing thereto.

36. By reason of the foregoing, plaintiff was seriously and permanently injured and damaged, rendered sick, sore, lame, and disabled, sustained severe nervous shock and mental anguish, great physical pain and emotional upset, some of which injuries are permanent in nature and duration, and plaintiff will be permanently caused to suffer pain, inconvenience, and other effects of such injuries, plaintiff incurred and in the future will necessarily incur medical expenses in an effort to be cured of said injuries, and the plaintiff has suffered and in the future will necessarily suffer additional loss of time and earnings from employment, and the plaintiff will be unable to pursue his usual duties with the same degree of efficiency as prior to this occurrence, all to his great damage.

37. By reason of the foregoing, the plaintiff has been damaged in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

38. The limitations set forth in section 1601 of the CPLR do not apply to this action by reason of one or more of the exceptions set forth in section 1602 of the CPLR.

AS AND FOR A SECOND CAUSE OF ACTION FOR BATTERY

39. Plaintiff repeats, reiterates, and realleges each and every allegation contained in the foregoing paragraphs of the within complaint with the same force and effect as if fully set forth herein.

40. At all times herein mentioned, defendants had the duty to ensure that their actions, activities, and behavior conformed to a certain standard of conduct established by the law for the protection of civilians, including the plaintiff, against unreasonable risk of harm.

41. On April 15, 2015, the plaintiff was without cause, reason, or justification, maliciously and intentionally battered, beaten, and physically abused by police officers employed by the defendants THE CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT, including but not limited to the defendants POLICE OFFICER KEITH ORVIETO, SERGEANT MATTHEW FEIGENBAUM and SERGEANT JASON STOCKER.

42. On April 15, 2015, the defendants intentionally physically contacted the plaintiff without the consent of the plaintiff.

43. The occurrence was caused solely by the conduct of the defendants and without any provocation or unlawful act on the part of the plaintiff contributing thereto.

44. By reason of the foregoing, plaintiff was seriously and permanently injured and damaged, rendered sick, sore, lame, and disabled, sustained severe nervous shock and mental anguish, great physical pain and emotional upset, some of which injuries are permanent in nature and duration, and plaintiff will be permanently caused to suffer pain, inconvenience, and other effects of such injuries, plaintiff incurred and in the future will necessarily incur medical expenses in an effort to be cured of said injuries, and the plaintiff has suffered and in the future will necessarily suffer additional loss of time and earnings from employment, and the plaintiff

will be unable to pursue his usual duties with the same degree of efficiency as prior to this occurrence, all to his great damage.

45. By reason of the foregoing, the plaintiff has been damaged in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

46. The limitations set forth in section 1601 of the CPLR do not apply to this action by reason of one or more of the exceptions set forth in section 1602 of the CPLR.

AS AND FOR A THIRD CAUSE OF ACTION FOR FALSE ARREST

47. Plaintiff repeats, reiterates, and realleges each and every allegation contained in the foregoing paragraphs of the within complaint with the same force and effect as if fully set forth herein.

48. At all times herein mentioned, defendants had the duty to ensure that their actions, activities, and behavior conformed to a certain standard of conduct established by the law for the protection of civilians, including the plaintiff.

49. On April 15, 2015, while the plaintiff was lawfully at and around the parking lot of Action Environmental Services a/k/a Action Carting located at 920 East 132nd Street, in the County of Bronx, City and the State of New York, he was unlawfully apprehended and arrested by the defendants.

50. On April 15, 2015, the defendants unlawfully and without cause ordered the plaintiff to put his hands up, invasively searched him, handcuffed him, and paraded him in public.

51. The plaintiff had not committed any offense and the defendants did not have justification, reasonable cause, or probable cause to believe that the plaintiff had committed any offense.

52. The defendants had no valid warrant or other valid basis to stop, question, search, arrest, or detain the plaintiff.

53. The defendants failed to make further inquiry when a reasonable person would have done so before arresting the plaintiff.

54. The defendants failed to conduct reasonable investigation of the identification and credibility of the witnesses at the scene and the physical evidence at the scene.

55. The defendants placed the plaintiff under arrest, citing crimes that he did not commit.

56. The defendants were aware that probable cause did not exist for the arrest of the plaintiff and that the arrest was without justification or excuse.

57. The defendants acted with reckless, willful, wanton, and malicious intent to arrest and oppress the plaintiff and said actions were committed in bad faith for the purpose of unlawfully and falsely arresting the plaintiff.

58. The occurrence was caused solely by the conduct of the defendants and without any unlawful act on the part of the plaintiff contributing thereto.

59. By reason of the foregoing, the plaintiff was falsely arrested and improperly deprived of his liberty and civil rights, and was caused to incur emotional upset, mental anguish, embarrassment, shame, humiliation, anguish, injury to reputation, lost earnings, and legal expenses.

60. By reason of the foregoing, the plaintiff has been damaged in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

61. The limitations set forth in section 1601 of the CPLR do not apply to this action by reason of one or more of the exceptions set forth in section 1602 of the CPLR.

**AS AND FOR A FOURTH CAUSE OF ACTION
FOR UNLAWFUL AND FALSE IMPRISONMENT**

62. Plaintiff repeats, reiterates, and realleges each and every allegation contained in the foregoing paragraphs of the within complaint with the same force and effect as if fully set forth herein.

63. At all times herein mentioned, defendants had the duty to ensure that their actions, activities, and behavior conformed to a certain standard of conduct established by the law for the protection of civilians, including the plaintiff.

64. On April 15, 2015, while the plaintiff was lawfully at and around the parking lot of Action Environmental Services a/k/a Action Carting located at 920 East 132nd Street, in the County of Bronx, City and the State of New York, he was unlawfully and falsely imprisoned by the defendants.

65. The plaintiff was unlawfully and falsely imprisoned commencing on April 15, 2015 continuing until the plaintiff was released from custody on or about April 17, 2015, during which time he was improperly taken to Central Booking.

66. The plaintiff had not committed any offense and the defendants did not have justification, reasonable cause, or probable cause to believe that the plaintiff had committed any

offense at the time the plaintiff was taken into confinement or thereafter, as the plaintiff did not commit any misconduct subsequent to the initial detention.

67. The defendants had no valid warrant or other valid basis to confine, imprison, or detain the plaintiff.

68. The defendants failed to make further inquiry when a reasonable person would have done so before they confined the plaintiff.

69. The defendants failed to conduct reasonable investigation of the identification and credibility of the witnesses at the scene and the physical evidence at the scene.

70. The defendants were aware that probable cause did not exist for the confinement of the plaintiff and that the confinement was without justification or excuse.

71. The defendants acted with reckless, willful, wanton, and malicious intent to confine the plaintiff and said actions were committed in bad faith for the purpose of unlawfully and falsely imprisoning the plaintiff.

72. The plaintiff was unlawfully and falsely imprisoned by the defendants who procured and/or effected the plaintiff's unlawful and false imprisonment knowing their actions to be wrongful, malicious, and without any valid basis.

73. The defendants intended to confine the plaintiff and the plaintiff was conscious of the confinement, but the plaintiff did not consent to the confinement.

74. The plaintiff was detained for an excessive, unreasonable, and extended period of time before the plaintiff was ultimately released and completely exonerated.

75. At all times herein mentioned, the defendants knew or should have known that the plaintiff was innocent of the crimes charged.

76. The occurrence was caused solely by the conduct of the defendants and without any unlawful act on the part of the plaintiff contributing thereto.

77. By reason of the foregoing, the plaintiff was falsely confined and improperly deprived of his liberty and civil rights, and was caused to incur emotional upset, mental anguish, embarrassment, shame, humiliation, anguish, injury to reputation, lost earnings, and legal expenses.

78. By reason of the foregoing, the plaintiff has been damaged in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

79. The limitations set forth in section 1601 of the CPLR do not apply to this action by reason of one or more of the exceptions set forth in section 1602 of the CPLR.

AS AND FOR A FIFTH CAUSE OF ACTION FOR ABUSE OF PROCESS

80. Plaintiff repeats, reiterates, and realleges each and every allegation contained in the foregoing paragraphs of the within complaint with the same force and effect as if fully set forth herein.

81. The defendants issued criminal legal process against the plaintiff for the purpose of forbearing certain acts by the plaintiff.

82. The plaintiff was deprived of his liberty and freedom by way of arrest and confinement.

83. The actions of the defendants causing the plaintiff to be arrested, imprisoned, and prosecuted, were affected for the ulterior purpose of causing plaintiff to be unlawfully deprived of his liberty and civil rights, and to suffer inconvenience, humiliation, shame, embarrassment, damage to his reputation and good name, and to incur legal expenses.

84. The defendants acted with ulterior purpose of causing the plaintiff harm, all the while lacking any economic justification, social excuse, or other justification.

85. The defendants activated the process for a collateral advantage or corresponding detriment to the plaintiff that is outside the legitimate ends of the process.

86. The false arrest, false imprisonment, and wrongful prosecution of plaintiff by the defendants was intentional, without justification or excuse, a misuse of process, and an abuse of judicial process.

87. By reason of the foregoing, the plaintiff sustained actual and special damages, was improperly deprived of his liberty and civil rights, and was caused to incur emotional upset, mental anguish, embarrassment, shame, humiliation, anguish, injury to reputation, lost earnings, and legal expenses.

88. The limitations set forth in section 1601 of the CPLR do not apply to this action by reason of one or more of the exceptions set forth in section 1602 of the CPLR.

AS AND FOR A SIXTH CAUSE OF ACTION
FOR MALICIOUS PROSECUTION

89. Plaintiff repeats, reiterates, and realleges each and every allegation contained in the foregoing paragraphs of the within complaint with the same force and effect as if fully set forth herein.

90. On April 15, 2015, the plaintiff was lawfully at and around the parking lot of Action Environmental Services a/k/a Action Carting located at 920 East 132nd Street, in the County of Bronx, City and the State of New York, and without any evidence.

91. The plaintiff had not committed any offense and the defendants did not have justification, reasonable cause, or probable cause to believe that the plaintiff had committed any offense.

92. The defendants, acting in the performance of their employment and the scope of their authority maliciously prosecuted the plaintiff by commencing an action in the Criminal Court of the City of New York, County of Bronx, under case number 2015BX017919.

93. The defendants had no probable cause for the criminal proceeding initiated, continued, and executed against the plaintiff.

94. The defendants lacked a reasonable basis to believe the plaintiff was guilty of the crimes charged based on the facts known to the defendants at the time the prosecution was initiated and failed to conduct further inquiry when a reasonable person would have done so before the prosecution.

95. The defendants commenced the criminal proceeding against the plaintiff with malice.

96. The defendants acted deliberately with awareness of conscious falsity.

97. The defendants fabricated charges against the plaintiff and set those charges forth in false and fabricated criminal charges, falsely sworn by the defendants.

98. The defendants fabricated information against the plaintiff, such as that he possessed the evidence of the crime, and included this information in their reports.

99. The criminal conduct and reports against the plaintiff were and are false and fraudulent.

100. Based upon the false criminal complaint and complaint reports prepared by the defendants, the criminal court relied on false charges.

101. The defendants' conduct was motivated by hatred, ill will, spite, and was wanton, reckless, and in willful disregard of the rights of the plaintiff.

102. By reason of the foregoing, the plaintiff sustained actual and special damages, was improperly deprived of his liberty and civil rights, and was caused to incur emotional upset, mental anguish, embarrassment, shame, humiliation, anguish, injury to reputation, lost earnings, and legal expenses.

103. By reason of the foregoing, the plaintiff has been damaged in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

104. The limitations set forth in section 1601 of the CPLR do not apply to this action by reason of one or more of the exceptions set forth in section 1602 of the CPLR.

AS AND FOR A SEVENTH CAUSE OF ACTION FOR NEGLIGENCE

105. Plaintiff repeats, reiterates, and realleges each and every allegation contained in the foregoing paragraphs of the within complaint with the same force and effect as if fully set forth herein.

106. On April 15, 2015, the defendants POLICE OFFICER KEITH ORVIETO, SERGEANT MATTHEW FEIGENBAUM and SERGEANT JASON STOCKER were graduates of the Police Academy of THE CITY OF NEW YORK.

107. At all times herein mentioned, it was the duty of the defendants to conduct their duties, employment, hiring, retention, rulemaking, disciplinary action, and training in a reasonably prudent manner.

108. At all times herein mentioned, the defendants had the duty to competently and sufficiently train the defendants POLICE OFFICER KEITH ORVIETO, SERGEANT MATTHEW FEIGENBAUM and SERGEANT JASON STOCKER to conform their conduct to a standard for the protection of individuals, inclusive of the plaintiff, against the unreasonable risk of harm by conducting themselves in such a manner so as not to intentionally, wantonly, and/or negligently inflict injuries to citizens such as the plaintiff herein.

109. At all times herein mentioned, the defendants had the duty to competently and sufficiently train the defendants POLICE OFFICER KEITH ORVIETO, SERGEANT MATTHEW FEIGENBAUM and SERGEANT JASON STOCKER in the protections of the rights of plaintiff under the Constitution and the Bill of Rights.

110. The defendants, their agents, servants, and/or employees were negligent in the hiring and retaining of persons who were unfit to serve as police officers, in that they hired persons who the defendants knew or should have known had negligent, reckless, careless, or dangerous propensities and a lack of proper temperament, organization, reliability, responsibility, carefulness, and prudence, in that the defendants failed to exercise reasonable precautions in employing and retaining officers by failing to properly investigate their background and employment records and/or having knowledge of said records, thereafter hiring and/or retaining officers.

111. The defendants, their agents, servants, and/or employees were negligent in the training and instruction of its police officers by not exercising care in instructing them as to their deportment, duties, behavior, and conduct as police officers and in the training and instruction on the proper use and method of arrest, detainment, and release.

112. The defendants, their agents, servants, and/or employees were negligent in failing to use such care in the performance of police officer duties as a reasonably prudent and careful police officer would have used under similar circumstances in the carrying out of their duties.

113. By reason of the foregoing, the plaintiff was caused to be falsely arrested, illegally deprived of his liberty and civil rights, caused to suffer imprisonment and confinement, caused to be assaulted and battered, wrongfully prosecuted, incapacitated from his usual vocation, and caused to incur emotional upset, mental anguish, embarrassment, shame, humiliation, anguish, injury to reputation, lost earnings, and legal expenses.

114. By reason of the foregoing, the plaintiff has been damaged in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

115. The limitations set forth in section 1601 of the CPLR do not apply to this action by reason of one or more of the exceptions set forth in section 1602 of the CPLR.

AS AND FOR AN EIGHTH CAUSE OF ACTION
FOR VIOLATION OF CIVIL RIGHTS AFFORDED BY 42 U.S.C. §§ 1981-1988

116. Plaintiff repeats, reiterates, and realleges each and every allegation contained in the foregoing paragraphs of the within complaint with the same force and effect as if fully set forth herein.

117. At all times herein mentioned, the defendants were acting under color of state law, to wit, under color of statutes, ordinances, regulations, policies, customs, and usages of The City of New York and The State of New York.

118. At all times herein mentioned, the defendants' acts constituted state action.

119. On and before April 15, 2015, the defendants developed and maintained policies, customs, and practices exhibiting deliberate indifference to the constitutional rights of persons in the City of New York, which caused a violation of the plaintiff's rights.

120. On and before April 15, 2015, it was the policy, custom, and practice of the defendants to improperly and inadequately investigate citizen and other complaints of police misconduct and acts of misconduct were instead tolerated, including but not limited to, incidents in the past wherein the defendants and their supervisors made false arrests without probable cause and allowed fellow police officers and employees to make false entries in official police department records, to issue false and fraudulent criminal complaints and accusatory instruments, and to cover up and hide wrongful conduct.

121. On and before April 15, 2015, it was the policy, custom, and practice of the defendants to fail to take steps to discipline, train, supervise, or otherwise correct the improper and illegal conduct of the individual defendants in this and similar cases involving misconduct, thereby failing to adequately discharge further constitutional violations on the part of its police officers.

122. On and before April 15, 2015, it was the policy, custom, and practice of the defendants to fail to require appropriate in-service training and re-training of police officers who were known to have engaged in police misconduct.

123. If certain individual defendants did not themselves engage in tortious conduct directed at the plaintiff, those individuals failed to prevent physical battery, arrest, and abuse of the plaintiff, or other tortious conduct by the other individual defendants directed toward the plaintiff, despite having a duty to do so.

124. As a result of the faulty policies, customs, and practices of the defendants, the police officers employed by the defendants believed their actions would not be properly monitored by supervisory officers and that misconduct would not be investigated or sanctioned, but would be tolerated.

125. The defendants' policies, customs, and practices demonstrated a deliberate indifference on the part of the policymakers to the constitutional rights of persons within the City of New York, and were the cause of the violations of plaintiff's rights.

126. The plaintiff in no way provoked or encouraged the conduct of the defendants and the defendants' conduct was in no way privileged.

127. The defendants, acting in concert and individually, deprived the plaintiff of his civil, constitutional, and statutory rights, and conspired to deprive plaintiff of such rights under the 1st, 4th, 5th, 8th, and 14th amendments, and 42 U.S.C. §§ 1981, 1983, 1985, 1986, and 1988, including but not limited to: the right to be free from arbitrary and groundless arrest, the right to be free from cruel and unusual punishment and summary punishment, the right to be free from unlawful restraints on movement, right not to be subjected to imprisonment without due process of law, the right to enjoy equal protection of the laws, the right to have all legal rights enjoyed by Caucasian persons, the right to be secure in person and property, the right to have persons entrusted with legal authority to act to enforce his civil rights to act to enforce such rights or be themselves adjudicated, the right to be free from excessive and unreasonable force, the right to obtain timely medical treatment, the right to be protected as a prisoner, and the right to be free from conspiracies to violate his civil rights by those acting under color of state law.

128. By reason of the foregoing, the plaintiff was caused to be falsely arrested, illegally deprived of his liberty and civil rights, caused to suffer imprisonment and confinement, caused to be assaulted and battered, wrongfully prosecuted, incapacitated from his usual vocation, and caused to incur emotional upset, mental anguish, embarrassment, shame, humiliation, anguish, injury to reputation, lost earnings, and legal expenses.

129. By reason of the foregoing, the plaintiff has been damaged in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

130. The limitations set forth in section 1601 of the CPLR do not apply to this action by reason of one or more of the exceptions set forth in section 1602 of the CPLR.

AS AND FOR A NINTH CAUSE OF ACTION FOR
MOTOR VEHICLE NEGLIGENCE

131. Plaintiff repeats, reiterates, and realleges each and every allegation contained in the foregoing paragraphs of the within complaint with the same force and effect as if fully set forth herein.

132. At all times herein mentioned defendant THE CITY OF NEW YORK supervised the NEW YORK CITY POLICE DEPARTMENT, its personnel and vehicles.

133. At all times herein mentioned defendant THE CITY OF NEW YORK supervised the NEW YORK CITY POLICE DEPARTMENT, its personnel and vehicles.

134. The plaintiff was injured as a result of the negligence, carelessness and recklessness of the defendants, their agents, servants and/or employees.

135. On or about April 15, 2015, defendant NEW YORK CITY POLICE DEPARTMENT was the registered owner of a Police Vehicle present at the parking lot of Action

Environmental Services a/k/a Action Carting located at 920 East 132nd Street in the County of Bronx , City and the State of New York (hereinafter referred to as the “aforesaid Police vehicle”)

136. On or about April 15, 2015, defendant NEW YORK CITY POLICE DEPARTMENT was the titled owner of the aforesaid Police vehicle.

137. On or about April 15, 2015, defendant NEW YORK CITY POLICE DEPARTMENT was the lessee of the aforesaid Police vehicle.

138. On or about April 15, 2015, defendant NEW YORK CITY POLICE DEPARTMENT was the lessor of the aforesaid Police vehicle.

139. On or about April 15, 2015, defendant NEW YORK CITY POLICE DEPARTMENT maintained the aforesaid Police vehicle.

140. On or about April 15, 2015, defendant NEW YORK CITY POLICE DEPARTMENT controlled the aforesaid Police vehicle.

141. On or about April 15, 2015, defendant THE CITY OF NEW YORK was the registered owner of the aforesaid Police vehicle.

142. On or about April 15, 2015, defendant THE CITY OF NEW YORK was the titled owner of the aforesaid Police vehicle.

143. On or about April 15, 2015, defendant THE CITY OF NEW YORK was the lessee of the aforesaid Police vehicle.

144. On or about April 15, 2015, defendant THE CITY OF NEW YORK was the lessor of the aforesaid Police vehicle.

145. On or about April 15, 2015, defendant THE CITY OF NEW YORK maintained the aforesaid Police vehicle.

146. On or about April 15, 2015, defendant THE CITY OF NEW YORK controlled the aforesaid Police vehicle.

147. On or about April 15, 2015, a police officer employed by defendant NEW YORK CITY POLICE DEPARTMENT and THE CITY OF NEW YORK was the operator of aforesaid Police vehicle.

148. On or about April 15, 2015, the aforesaid Police vehicle was being operated by a police officer in course and scope of employment with defendant NEW YORK CITY POLICE DEPARTMENT.

149. On or about April 15, 2015, the aforesaid vehicle was being operated by a police officer in course and scope of employment with defendant THE CITY OF NEW YORK.

150. On or about April 15, 2015, defendant POLICE OFFICER KEITH ORVIETO was the operator of aforesaid Police vehicle.

151. On or about April 15, 2015, the aforesaid Police vehicle was being operated by a defendant POLICE OFFICER KEITH ORVIETO in course and scope of employment with defendant NEW YORK CITY POLICE DEPARTMENT.

152. On or about April 15, 2015, the aforesaid vehicle was being operated by defendant POLICE OFFICER KEITH ORVIETO in course and scope of employment with defendant THE CITY OF NEW YORK.

153. On or about April 15, 2015, defendant SERGEANT MATTHEW FEIGENBAUM was the operator of aforesaid Police vehicle.

154. On or about April 15, 2015, the aforesaid Police vehicle was being operated by a defendant SERGEANT MATTHEW FEIGENBAUM in course and scope of employment with defendant NEW YORK CITY POLICE DEPARTMENT.

155. On or about April 15, 2015, the aforesaid vehicle was being operated by defendant SERGEANT MATTHEW FEIGENBAUM in course and scope of employment with defendant THE CITY OF NEW YORK.

156. On or about April 15, 2015, defendant SERGEANT JASON STOCKER was the operator of aforesaid Police vehicle.

157. On or about April 15, 2015, the aforesaid Police vehicle was being operated by a defendant SERGEANT JASON STOCKER in course and scope of employment with defendant NEW YORK CITY POLICE DEPARTMENT.

158. On or about April 15, 2015, the aforesaid vehicle was being operated by defendant SERGEANT JASON STOCKER in course and scope of employment with defendant THE CITY OF NEW YORK.

159. On or about April 15, 2015, a certain Police vehicle operated by a police officer came into contact with the dirt bike operated by plaintiff TYRELL MITCHINER at the parking lot of Action Environmental Services a/k/a Action Carting located at 920 East 132nd Street in the County of Bronx, City and the State of New York.

160. Solely as a result of defendants' negligence, carelessness and recklessness, plaintiff TYRELL MITCHINER was caused to suffer severe and serious personal injuries to mind and body, and further, plaintiff was subjected to great physical pain and mental anguish, as a result of defendants' negligence, carelessness and recklessness in causing this accident.

161. The aforesaid occurrence was caused by the negligence of defendants, without any culpable conduct on the part of the plaintiff TYRELL MITCHINER.

162. That by reason of the foregoing, plaintiff TYRELL MITCHINER sustained injuries to his head, limbs, body and nervous system and has been rendered sick, sore, lame and disabled and upon information and belief, some of these injuries are permanent; he has been confined to bed and home for some time; he has been unable to pursue his usual occupation and recreation activities for some time and upon information and belief, such disability is continuing; he has been compelled to submit himself to the hospital and medical care and attention in an endeavor to cure or alleviate his injuries for which medical and hospital expenses have been incurred and will continue to be incurred and he has been compelled to suffer physical pain, mental anguish and emotional distress.

163. As a result of the foregoing, plaintiff TYRELL MITCHINER sustained serious personal injuries as defined in Section 5102(d) of the Insurance Law of the State of New York and/or economic loss greater than basic economic loss as defined in Section 5102(a) of the Insurance Law of the State of New York.

164. This action falls within one or more of the exceptions set forth in Section 1602 of the Civil Practice Law and Rules.

165. Due to the defendants' negligence, plaintiff is entitled to damages in such which exceeds the jurisdictional limits of all lower Courts which may otherwise have jurisdiction.

WHEREFORE, plaintiff demands judgment for compensatory and/or punitive damages against the defendants on each and every cause of action asserted herein in a sum which exceeds

the jurisdictional limits of all lower courts to be determined by a jury at the time of trial, together with the costs, interest, and disbursements of this action.

Dated: New York, New York
April 15, 2016



By: Alexander Kran III
LEAV & STEINBERG, L.L.P.
Attorneys for Plaintiff
140 Broadway, Suite 3601
New York, New York 10005
(212) 766-5222

AK/am

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

X

INDEX NO.

TYRELL MITCHINER,

Plaintiff,

**INDIVIDUAL
VERIFICATION**

-against-

THE CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, POLICE OFFICER KEITH ORVIETO,
SERGEANT MATTHEW FEIGENBAUM and SERGEANT
JASON STOCKER,

Defendants.

X

STATE OF NEW YORK)
) ss.:
COUNTY OF NEW YORK)

TYRELL MITCHINER, being duly sworn, deposes and says:

That I am the plaintiff in the within action.

I have read the foregoing **COMPLAINT** and know the
contents thereof and the same is true to the best of my knowledge, except as to those matters
herein stated to be alleged upon information and belief and that as to those matters, I believe
them to be true.

x *Tyrell Mitchiner*
TYRELL MITCHINER

Sworn to before me this
15th day of APRIL, 20 16

Agnieszka Mackiewicz
NOTARY PUBLIC

AGNIESZKA MACKIEWICZ
Notary Public, State of New York
No. 01MA6299183
Qualified in Queens County
Commission Expires March 17, 20 18

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SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

Index #

TYRELL MITCHINER,

Plaintiff,

-against-

THE CITY OF NEW YORK, NEW YORK CITY
POLICE DEPARTMENT, POLICE OFFICER KEITH ORVIETO,
SERGEANT MATTHEW FEIGENBAUM and
SERGEANT JASON STOCKER,

Defendants.

SUMMONS and VERIFIED COMPLAINT

LEAV & STEINBERG, L.L.P.

Attorneys for Plaintiff

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